

Court No. - 39

Case :- WRIT - C No. - 23492 of 2020

Petitioner :- Paramhans Paswan

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Jagadish Prasad Yadav

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard the learned counsel for the petitioner, learned Standing counsel for the respondent nos. 1 and 2 and Sri N.K. Tewari, learned counsel for the respondent no. 3.

The present writ petition has been filed with the following relief;

1. Issue a writ, order or direction in the nature of certiorari quashing the impugned citatiion certificate 30.10.2019 (Annexure No. 1 to the writ petition) which has been issued by Tehsildar, Tehsil Sagari, district Azamgarh (respondent no. 2) against the petitioner for recovery of Rs. 94,641/- plus other charges thereon.

2. Issue a writ, order or direction in the nature of mandamus directing the respondent no. 3 i.e. Executive Engineer, Electricity Distribution Division-II, U.P. Power Corporation Ltd., Azamgarh to take the due amount in easy instalments as fixed by this Hon'ble Court.

3. Issue any other suitable writ, order or direction, which this Hon'ble Court may deem fit and proper in the circumstances of the case.

4. award cost of the writ petition to the petitioner."

At the very outset the learned counsel for the petitioner has confined his prayer that he is ready to pay the due amount in easy instalments sought to be recovered from the petitioner by the respondent Corporation.

Sri N.K. Tewari, learned counsel for the Power Corporation submits that the petitioner has a remedy to approach before the respondent no. 3 under Clause 6.14 of Electricity Supply Code, 2005 for the redressal of his grievance. There is a force in the argument of the learned counsel for the Power Corporation, as such we dispose of the writ petition with the direction to the petitioner to

approach the authority concerned by making a representation within two weeks who in turn shall consider the grievance of the petitioner and pass appropriate order in accordance with law within four weeks thereafter.

Order Date :- 5.1.2021

Shahnawaz